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Study Notes

THE OCCUPATIONAL SAFETY, HEALTH AND WORKING CONDITIONS CODE, 2020 Part 2

SAFETY COMMITTEE AND SAFETY OFFICERS SECTION 22

- The **appropriate Government may mandate the formation of a Safety Committee** in certain establishments, consisting of equal or more worker representatives than employer representatives.
- **In establishments with the following workforce, the employer must appoint safety office:**
 - ✓ Factory 500 or more workers in a factory.
 - ✓ 250 or more workers in a factory with hazardous processes.
 - ✓ 250 or more workers in construction work.
 - ✓ 100 or more workers in a mine.

RESPONSIBILITY OF EMPLOYER FOR MAINTAINING HEALTH, SAFETY AND WORKING CONDITIONS SECTION 23

- The **employer must ensure health, safety, and working conditions in line with the Central Government's standards**, including:
 - ✓ Cleanliness and hygiene.
 - ✓ Adequate ventilation, temperature, and humidity.
 - ✓ A work environment free from dust, harmful gases, fumes, and impurities.
 - ✓ Proper humidification, ventilation, and cooling in workrooms.
 - ✓ Potable drinking water.
 - ✓ Sufficient space to prevent overcrowding and provide comfort for employees.
 - ✓ Adequate lighting.
 - ✓ Separate latrine and urinal facilities for male, female, and transgender employees, with maintained hygiene.
 - ✓ Effective treatment of wastes and effluents.
 - ✓ Any other conditions deemed necessary by the Central Government.

WELFARE FACILITIES IN THE ESTABLISHMENT, ETC. SECTION 24

- The employer shall **be responsible for providing and maintaining welfare facilities for employees as prescribed by the Central Government, including:**
 - ✓ Separate washing facilities for male and female employees.
 - ✓ Bathing places and locker rooms for male, female, and transgender employees.
 - ✓ A place to store and dry clothing not worn during working hours.
 - ✓ Sitting arrangements for employees who work standing.
 - ✓ Canteens for establishments with 100 or more workers, including contract laborers.
 - ✓ Medical examinations for employees in mines, both pre-employment and periodically.
 - ✓ Adequate first-aid boxes or cupboards, accessible during working hours.
 - ✓ Any other welfare measures deemed necessary by the Central Government for a decent standard of living.
- The Central Government may also mandate:

- ✓ Ambulance rooms in factories, mines, or construction sites with more than 500 workers.
- ✓ Medical facilities at operating centers and halting stations for motor transport workers.
- ✓ Shelters, rest-rooms, and lunch-rooms for employees in factories, mines, and transport undertakings with more than 50 workers.
- ✓ Welfare officers in factories, mines, or plantations with 250 or more workers.
- ✓ Temporary living accommodations for building workers on-site.
- ✓ Payment by principal employers for contractor-provided accommodations in construction work.
- ✓ Other prescribed welfare measures.
- The Central Government **may require a creche facility in establishments with more than 50 workers, providing suitable space for children under 6 years old.** The facility can be shared or provided by external entities, including government, private organizations, or NGOs.

DAILY AND WEEKLY WORKING HOURS, LEAVE, ETC. SECTION 25

- **No worker shall be required or allowed to work in any establishment for more than:**
 - ✓ *eight hours in a day; and*
 - ✓ *the working hours for each day shall be fixed within such limits, with intervals and spread overs as notified by the appropriate Government.*
 - ✓ *the hours of work in case of motor transport worker shall include"*
 - Time spent working during the running time of the transport vehicle.
 - Time spent on subsidiary work.
 - Time spent in mere attendance at terminals for less than 15 minutes.

- **"Running time"** refers the duration from when the vehicle starts operating at the beginning of the workday until it ceases functioning at the end of the workday, however, excludes any breaks or interruptions when the vehicle is not in operation for a period specified by the Central Government. During such interruptions, individuals involved in driving or related tasks are free to use their time as they please or engage in other work.
- **"Subsidiary work"** refers to tasks related to a transport vehicle, its passengers, or its load that are performed outside the vehicle's running time and includes activities such as handling accounts, cash transactions, signing registers, managing service sheets, checking tickets, and similar duties, involves responsibilities like taking over and garaging the transport vehicle, traveling from the sign-on location to where the vehicle is taken over, and from where the vehicle is left to the sign-off location, it encompasses work associated with the maintenance and repair of the transport vehicle, as well as the loading and unloading of goods or passengers.
- **"Period of mere attendance"** means the period during which a person remains at his post solely in order to reply to possible calls or to resume action at the time fixed in the duty schedule.

WEEKLY AND COMPENSATORY HOLIDAYS SECTION 26

- In any establishment, a **worker cannot work for more than six days a week.**

- In a motor transport undertaking, an **employer can require a worker to work on a weekly holiday to prevent disruption**, provided the worker does **not work for more than ten consecutive days without a full day off**.
- If a **worker is denied a weekly holiday due to an exemption** under the Code, **compensatory holidays must be granted within the same month or the next two months, equal to the number of weekly holidays denied**.

EXTRA WAGES FOR OVERTIME SECTION 27

- Workers who **work beyond the prescribed hours in a day or week are entitled to receive wages at twice the regular rate for overtime work**.
- Overtime calculations can **be based on a daily or weekly basis**, whichever is more favorable to the worker.
- Employers **may request overtime work**, but it is **subject to the worker's consent**.
- The **appropriate Government may specify the total number of overtime hours**.

NIGHT SHIFTS SECTION 28

- If a **worker's shift extends beyond midnight**:
 - ✓ **for calculating a weekly holiday** under section 26, a **whole day's holiday means a continuous 24-hour period starting when their shift ends**.
 - ✓ **the following day for the worker will be considered as a 24-hour period beginning when the shift ends**, and the hours worked after midnight are counted as part of the previous day.

PROHIBITION OF OVERLAPPING SHIFTS SECTION 29

- Work in any establishment should **not involve more than one group of workers performing the same type of work simultaneously**.
- The appropriate Government, or with its approval, the Chief Inspector-cum-Facilitator, **may grant written exemptions to specific establishments**, classes of establishments, departments, sections, or categories of workers, based on specified reasons and conditions.

RESTRICTION ON DOUBLE EMPLOYMENT IN FACTORY AND MINE SECTION 30

- **No worker shall be required or allowed to work in a mine or factory if they have already worked in any similar establishment within the preceding twelve hours**, except in circumstances prescribed by the appropriate Government.

NOTICE OF PERIODS OF WORK SECTION 31

- Every establishment **must display a notice specifying the work periods and the times during which workers may be required to work**.
- The **form, display method, and submission procedure** for this notice to the Inspector-cum-Facilitator will **be determined by the appropriate Government**.

- Any changes to the work schedule requiring notice modification must be communicated to the Inspector-cum-Facilitator in advance. The change can only be implemented after one week from the last modification, and upon receiving the Inspector-cum-Facilitator's approval.

ANNUAL LEAVE WITH WAGES, ETC. SECTION 32

- Workers in an establishment are entitled to leave with wages in a calendar year under specific conditions:
 - ✓ the worker must have worked for at least 180 days in the year.
 - ✓ entitlement is one day of leave for every 20 days of work (15 days for adolescent workers, 15 days for underground mine workers).
 - ✓ periods of layoff, maternity leave, or annual leave count for the 180-day requirement but do not accrue leave.
 - ✓ holidays during the leave period are not counted as leave.
 - ✓ workers whose service starts after January 1st are entitled to leave if they've worked one-fourth of the remaining days in the year.
 - ✓ if a worker is discharged, dismissed, quits, superannuates, or dies, they or their heir are entitled to wages in lieu of unused leave based on certain conditions.
 - the payment is due within specific timeframes after discharge, dismissal, quitting, superannuation, or death.
- Workers can request encashment of leave at the end of the calendar year.
- Unused leave can be carried forward to the next calendar year, with a maximum of 30 days carried over.
- If leave exceeds 30 days, the excess will be encashed.
- If leave is applied but not granted, it can be carried forward without limit.

MAINTENANCE OF REGISTERS, RECORDS AND FILING OF RETURNS SECTION 33

- An employer of an establishment shall:
 - ✓ maintain register electronically or otherwise, containing such particulars of workers as may be prescribed by the appropriate Government including:
 - work performed by them;
 - number of hours of work constituting normal working hours in a day;
 - day of rest allowed in every period of seven days;
 - wage paid and receipts given therefor;
 - leave, leave wages, overtime work, attendance and dangerous occurrences; and
 - employment of adolescent;
 - ✓ display notices at the work place of the workers;
 - ✓ issue wage slips to the workers, in electronic forms or otherwise; and
 - ✓ file such return electronically or otherwise to the Inspector-cum-Facilitator.

APPOINTMENT OF INSPECTOR CUM FACILITATORS SECTION 34

- **The appropriate Government may, appoint Inspector-cum- Facilitators.**
- **The Inspector-cum-Facilitators shall, apart from other duties to be discharged conduct inspections which may provide for:**
 - ✓ *the generation of web-based inspection and calling of information, electronically and such scheme shall, inter alia, have provisions to cater to special circumstances for assigning inspection and calling for information from establishment or any other person besides web-based inspections; and*
 - ✓ *provide for the randomized selection of establishment and the Inspector-cum-Facilitator for inspection;*
 - ✓ *the inspection scheme may be developed, considering various factors, including:*
 - *assignment of unique number, to each establishment (which will be same as the registration number allotted to the establishment registered under section 3), unique number to each Inspector-cum-Facilitator and to each inspection;*
 - *timely uploading of inspection;*
 - *provisions for special inspections; and*
 - *the characteristics of employment, the nature of work, and characteristics of the workplaces based on such parameters as may be notified by the appropriate Government.*

POWERS OF INSPECTOR- CUM- FACILITATORS SECTION 35

- **An Inspector-cum-Facilitator may:**
 - ✓ *entering the workplaces with the help of government or public authority personnel or experts, can enter any place that is used as a workplace or suspected to be a workplace.*
 - ✓ *inspect and examine the establishment, including premises, equipment, and other relevant materials.*
 - ✓ *investigate accidents that may have occurred at the workplace, even if they didn't result in serious harm.*
 - ✓ *inquire into plantations to examine crops, inspect workers, and review relevant documents to ensure compliance with the rules.*
 - ✓ *provide information and educate employers and workers about the rules and regulations outlined in this code.*
 - ✓ *require the production of any documents related to the workplace or work activities.*
 - ✓ *search and seizure if there's reason to believe that an offense has occurred under the code, the official can search, seize, or make copies of documents as necessary.*
 - ✓ *preserving premises by instructing the occupier or employer to leave certain premises undisturbed for as long as necessary during inspections or inquiries.*
 - ✓ *measurements, recordings, photographs, videographs, and other recordings for the purpose of examinations or inquiries.*

- ✓ *taking samples* of articles or substances found in the workplace or the air in or around the workplace, following the procedures set by the appropriate government.
- ✓ *handling dangerous articles or substances* in a workplace that seems to be harmful to the health and safety of employees, they can order it to be taken apart or subjected to tests. They can also take possession of it and keep it for examination as long as needed.
- ✓ *show cause notices* asking the employer or concerned party to explain any violations or issues related to safety, health, and welfare regulations stated in this code or its associated rules and regulations.
- ✓ *prosecute, conduct or defend* before any court any complaint or other proceeding arising under this Code, the rules and regulations made thereunder.
- ✓ *additional powers and duties* specified by the government to ensure workplace safety.

MEDICAL OFFICER SECTION 42

- The **Government may appoint qualified medical practitioners** to be medical officers for certain workplaces like factories, mines, plantations, and motor transport undertakings. However, before they start their job, these medical officers **must inform the Government about any personal or financial interests** they may have in the establishment they are going to work with so as to ensure transparency and help to maintain the integrity of the medical officers' roles.
- The **medical officer has several responsibilities, including:**
 - ✓ *examining and certifying workers* in mines, factories, or other establishments involved in potentially dangerous occupations or processes, as specified by regulations.
 - ✓ *providing medical supervision* for the health of workers in various settings such as factories, mines, plantations, and motor transport undertakings which includes cases where illnesses have occurred, and it is reasonable to believe that they are related to the nature of the work or the conditions in the workplace.
 - ✓ *examining and certifying adolescents* to determine their fitness for employment in settings like factories, plantations, motor transport undertakings, or any other specified establishments which is crucial, especially if the work they are assigned is likely to pose a risk to their health.

EMPLOYMENT OF WOMEN SECTION 43

- Women have the **right to work in any type of establishment** and may also **work before 6 a.m. and after 7 p.m.**, but only if they agree to it. However, certain rules regarding safety, holidays, working hours, or other conditions must be followed by the employer, as decided by the Government.

ADEQUATE SAFETY OF EMPLOYMENT OF WOMEN IN DANGEROUS OPERATION SECTION 44

- If the Government believes that employing women in a specific type of establishment or in certain hazardous processes may **pose risks to their health and safety, they can require the employer to put in place proper safety measures before hiring women** for those particular tasks.

APPLICABILITY OF PART I (CONTRACT LABOUR) OF CHAPTER XI SECTION 45

- This **Part applies to two situations:**
 - ✓ *Establishments with 50 or more contract workers employed or employed in the past 12 months.*
 - ✓ *Manpower supply contractors with 50 or more contract workers on any day in the past 12 months.*
- It **does not apply to establishments where work is occasional or casual.** If there is uncertainty, the Government will decide after consulting the National Board or State Advisory Board.
- **Work is not considered intermittent if:**
 - *it was performed for more than 120 days in the past 12 months.*
 - *it is seasonal work performed for more than 60 days in a year.*

LICENSING OF CONTRACTORS SECTION 47

- **Contractors are prohibited from:**
 - ✓ supplying or engaging contract labor in any establishment.
 - ✓ undertaking or executing work using contract labor without proper authorization.
- To supply or engage contract labor, contractors **must obtain a license issued by the authority.** The license specifies:
 - ✓ The number of contract workers the contractor can employ.
 - ✓ The amount of security to be deposited.
- If the contractor **does not meet the qualifications for a regular license, they may still be granted a work-specific license.**
 - ✓ this electronic license, which can be renewed online, is issued for a specific job or project.
 - ✓ it includes conditions on working hours, wages, and facilities for contract labor.
- The **license must be obtained from:**
 - ✓ The authority appointed by the Central Government if it's the Central Government's jurisdiction.
 - ✓ The authority designated by the State Government if it's a State jurisdiction.
- Contractors **operating in more than one state or nationwide may get their license from the authority designated by the Central Government.**
 - ✓ The Central Government authority will consult with the concerned state authorities before issuing such licenses.

PROCEDURE FOR ISSUE OR RENEWAL OF LICENCE SECTION 48

- Applications for a license under section 119 **must be submitted electronically**, including details like the number of contract laborers and work type, as per government guidelines.
- A license issued under section 119 is **valid for five years**. To increase the number of laborers, contractors **must apply for an amendment and, upon approval and security deposit, can extend the number for the remaining license period**.

APPEAL SECTION 52

- Any person aggrieved by an order under sections 47, 48, or 51 **may appeal to the Appellate Authority designated by the Appropriate Government within 30 days** of receiving the order.
- If the **appeal is not filed within the 30-day period, the appellate authority may still consider** it if the delay is due to a valid and sufficient cause.
- Upon receiving the appeal, the appellate authority **must dispose of the appeal within 30 days** after giving the appellant an opportunity to be heard.

RESPONSIBILITY FOR PAYMENT OF WAGES SECTION 55

- The **contractor is responsible for paying the wages of each contract worker employed by them**, within a period specified by the government.
- Wages **must be disbursed through bank transfer or electronic methods**, and the contractor **must inform the principal employer** about the payment electronically. If electronic payment isn't feasible, the government may allow alternative methods.
- If the **contractor fails to pay wages on time or in full, the principal employer becomes responsible** for paying the full amount to the workers and can recover the amount from the contractor. This can be done by deducting the owed amount from any money due to the contractor or treating it as a debt to be repaid.
- If the contractor fails to pay wages, the **government can use the contractor's security deposit to pay the workers**, with the payment process defined by the government's regulations.

PROHIBITION OF EMPLOYMENT OF CONTRACT LABOUR SECTION 57

- **Hiring contract labor for core activities is generally prohibited, with exceptions.**
- Principal employers can use contract labor for core activities under certain conditions:
 - ✓ if the activity is normally done through a contractor.
 - ✓ if the activity does not require full-time workers for most working hours or long periods.
 - ✓ if there is a sudden increase in the volume of work that needs to be completed in a specified time.
- The Government **may appoint a designated authority to advise on whether an activity is core**.
- **If there is uncertainty, the concerned party can apply to the Government**, which will refer the issue to the designated authority.

- The designated authority **will investigate and report to the Government, which will make the final decision** within the prescribed timeframes.

APPLICABILITY OF PART II (INTER-STATE MIGRANT WORKERS) OF CHAPTER XI SECTION 59

- This Part **applies to every establishment where ten or more inter-State migrant workers** are employed or have been employed **on any day in the preceding 12 months.**

FACILITIES TO INTER-STATE MIGRANT WORKERS SECTION 60

- Employers and contractors hiring interstate migrant workers **must ensure they have appropriate working conditions**, considering they are working outside their home state.
- In the event of a fatal accident or serious injury to a migrant worker, the employer or contractor **must promptly report it to relevant authorities in both states and inform the worker's next of kin.**
- Migrant workers **must receive all benefits provided to other workers**, including those under the Employees' State Insurance Act, 1948, the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, and access to medical check-ups.

JOURNEY ALLOWANCE SECTION 61

- Employers **must pay a lump sum amount annually to each inter-state migrant worker** to cover their travel expenses between the workplace and their hometown.
- The **government will determine the specific details**, including eligibility requirements (such as minimum service), frequency of payment, travel class, and other related matters, which will be outlined in regulations.

PAST LIABILITIES SECTION 65

- After the employment of an interstate migrant worker ends, **no legal action can be taken to recover outstanding debts related to their employment.**
- Any **unresolved financial obligations to the contractor or principal employer become extinguished or unenforceable once the worker's employment period is completed.**

PROHIBITION OF EMPLOYMENT OF AUDIO-VISUAL WORKER WITHOUT AGREEMENT SECTION 66

- **No person can be employed as an audio-visual worker unless a written agreement exists** between the worker and either the producer or the contractor, or another entity through whom the worker is employed.
- The **agreement must be registered with the competent authority** notified by the government, which is the responsibility of the producer of the audio-visual program.
- The **agreement must include details about** the worker and follow the format set by regulations.

- If the **worker is hired through a contractor**, the agreement must specify that the producer is responsible for fulfilling the contractor's obligations, including wages, and can seek reimbursement from the contractor.
- The **agreement must include key details** such as the nature of the assignment, wages, benefits, health and safety measures, working hours, welfare facilities, and a dispute resolution process.
- In **case of unresolved disputes, either party can seek resolution** through the Industrial Tribunal under the Industrial Disputes Act, 1947.
- The **producer is responsible for providing the facilities specified in the agreement, and wage payments must be made through electronic means.**

APPROVAL AND LICENSING OF FACTORIES SECTION 79

- The **Government may set rules for submitting factory plans**, including details, specifications, and certifications.
- Rules can **require prior permission for factory locations and construction/expansion.**
- The **Government may regulate** factory licensing, including fees for obtaining and renewing licenses.
- If **no response is received within 30 days** for an application submitted electronically, **permission is deemed granted.**
- **Denial of permission allows applicants to appeal** to the Central Government (if denied by State) or the State Government (in other cases).

LIABILITY OF OWNER OF PREMISES IN CERTAIN CIRCUMSTANCES SECTION 80

- Property owner and occupants of rented buildings used as separate factories **must jointly and individually ensure the provision and maintenance of common facilities**, which includes safety measures, fire prevention and protection, access, hygiene, occupational health, ventilation, temperature control, emergency preparedness, canteens, shelter, rest areas, and childcare facilities.
- **Both the property owner and factory occupants** are responsible for maintaining these facilities.

DANGEROUS OPERATIONS SECTION 82

- The **Government can create rules that:**
 - ✓ **apply to specific factories or types of factories** where manufacturing processes or operations pose a serious risk of bodily injury, poisoning, or disease. These rules can specify and declare certain processes or operations as dangerous.
 - ✓ **prohibit or restrict the employment of pregnant women** in these dangerous manufacturing processes or operations.
 - ✓ **may mandate periodic medical examinations for workers** to assess their fitness for employment, and the cost of these examinations will be covered by the factory owner.

- ✓ **outline requirements for providing welfare amenities, sanitary facilities, protective equipment, clothing, and any other necessary provisions to ensure the safety of workers in these hazardous operations.**

CONSTITUTION OF SITE APPRAISAL COMMITTEE SECTION 83

- The **Government can form one or more Site Appraisal Committees** led by a chairman and consisting of other members, with a specific purpose outlined in regulations.
- These **committees review applications for granting permission for the initial location of factories** involving hazardous processes or for the expansion of such factories.
- The **committee has a time limit of 30 days** from receiving the application to make its recommendations.

OFFENCES AND PENALTIES

Offence	Penalty
General penalty for offences: S 94	Minimum ₹2 lakh, may extend to ₹3 lakh. If violation continues after conviction, additional penalty of ₹2,000 per day for continued contravention.
Causing obstruction to Chief Inspector-cum-Facilitator or Inspector-cum -Facilitator, etc.: S. 95	Imprisonment for up to 3 months, fine up to ₹1 lakh, or both. If convicted again, imprisonment for up to 6 months, fine ₹1 lakh to ₹2 lakh, or both.
Penalty for non-maintenance of register, records and non-filing of returns, etc.: S. 96	Minimum ₹50,000, may extend to ₹1 lakh.
Contravention of certain provisions: S. 97	₹50,000 to ₹1 lakh. If convicted again, imprisonment for up to 3 months, fine up to ₹2 lakh, or both.
Falsification of records, etc.: S. 98	Imprisonment for up to 3 months, fine up to ₹1 lakh, or both. If convicted again, imprisonment for up to 6 months, fine ₹1 lakh to ₹2 lakh, or both.
Contravention of provisions of duties relating to hazardous processes: S. 102	Imprisonment for up to 2 years, fine up to ₹5 lakh. If failure continues after conviction, fine up to ₹25,000 per day. If contravention continues beyond 1 year, imprisonment for up to 3 years, fine up to ₹20 lakh, or both.

SOCIAL SECURITY FUND SECTION 115

- **Appropriate Government shall establish a social security fund** to promote the well-being of unorganized workers.
- This **fund will receive contributions** from:
 - ✓ Fines for offenses, as specified in section 114(4).
 - ✓ Penalties, as specified in section 111(6).
 - ✓ Other sources as prescribed by the government.
- The **fund will be utilized for** the welfare of unorganized workers, in accordance with government guidelines. It may also include transferring funds to existing welfare programs for unorganized workers under different laws, aiming to improve their overall well-being.